

**OFFICE OF THE JOINT COMMISSIONER OF POLICE**  
**CRIME BRANCH, HOMICIDE INVESTIGATION DIVISION**  
**NATIONAL CAPITAL REGION, NEW DELHI**

**FINAL INVESTIGATION REPORT UNDER SECTION 173 CR.P.C. //**  
**CLOSURE REPORT**

|                                    |                                                                                                   |
|------------------------------------|---------------------------------------------------------------------------------------------------|
| FIRST INFORMATION REPORT (FIR) NO. | 412 / 2025                                                                                        |
| DATE & TIME OF REGISTRATION        | October 14, 2025 // 09:15 Hours                                                                   |
| DATE & ESTIMATED TIME OF INCIDENT  | Intervening Night of October 13-14, 2025 // Between 22:00 and 00:30 Hours                         |
| PLACE OF OCCURRENCE                | Apartment 14B, 14th Floor, Sky-Line Regal Towers, Sector 5, Gurugram Corridor                     |
| IDENTITY OF THE DECEASED           | Vikram Aditya Malhotra, Age: 52 Years, Occupation: Managing Director, Malhotra Global Enterprises |
| STATUTORY SECTIONS APPLIED         | Section 302 (Murder) of the Indian Penal Code, 1860 (IPC)                                         |
| INVESTIGATING OFFICER (I.O.)       | Senior Inspector Devendra Kumar, Homicide Division, Crime Branch                                  |
| FINAL CASE STATUS                  | Closed — Unresolved due to Insufficiency of Actionable Evidence                                   |

**1. CASE OVERVIEW**

The criminal machinery was set into motion on the morning of October 14, 2025, upon receipt of telephonic telecommunication from the Resident Welfare Association (RWA) of Sky-Line Regal Towers. The communication reported that Mr. Vikram Aditya Malhotra, a prominent and wealthy corporate executive, was discovered unresponsive inside his residential premises. Preliminary corporate profiling indicated that the deceased was embroiled in complex multi-million dollar litigation and structural corporate restructuring, giving rise to high-stakes adversarial motives. While initial visual assessments at the perimeter suggested an internal, isolated event—possibly suicide—comprehensive analytical forensic parameters and internal anatomical inconsistencies led this division to reclassify the proceeding under Section 302 of the IPC. Following an exhaustive multi-month investigation, this report details the evidentiary findings and the formal legal grounds necessitating the closure of the case file due to insurmountable gaps in the circumstantial chain of proof.

## 2. INITIAL CRIME SCENE FINDINGS & SPOT MAHAZAR (INQUEST)

A meticulous inspection of the scene of occurrence was conducted on October 14, 2025, commencing at 09:45 Hours, executed in the presence of two independent panchas under the strict mandates of the Code of Criminal Procedure (Cr.P.C.). The primary locus of the crime scene was the master bedroom of Apartment 14B. The architectural perimeter exhibited a profound "locked-room" configuration: the primary steel-reinforced entrance door was mechanically secured from the inside via a heavy-duty deadbolt latch, which necessitated structural breaching by estate security guards in the presence of initial emergency responders. All perimeter windows, double-glazed and structurally reinforced, were found completely sealed from within, with no mechanical deformities, tool marks, or structural compromises indicative of forced entry or exit.

The body of the deceased was discovered lying in a supine position on the king-size bed, oriented north-to-south. The posture was uniquely pristine, with the limbs aligned parallel to the torso, and the bed linen showed minimal displacement—an arrangement fundamentally anomalous to the violent physiological struggle naturally associated with mechanical asphyxiation. Physical evidence retrieved from the immediate perimeter included an unlocked smartphone belonging to the deceased, an empty tumbler on the nightstand containing microscopic residue of a distilled spirit, and a standard prescription vial of sedative medication registered to the deceased. Latent fingerprint lifting across the master bedroom, the immediate bathroom, and the mechanical assembly of the main door lock yielded exclusively the dermatoglyphic profiles matching the deceased, with no foreign prints identifiable above the baseline threshold of environmental contamination.

## 3. FORENSIC MEDICINE & AUTOPSY SUMMARY

The post-mortem examination was executed on October 14, 2025, at 14:30 Hours at the Department of Forensic Medicine, Civil Complex Hospital, under Autopsy Protocol No. PM-884/25. The examining medical board concluded that the cause of death was *"Asphyxia resulting from occlusion of upper external respiratory passages (smothering), executed via soft, yielding material."* The post-mortem interval (PMI) was scientifically calculated to reside between 22:00 Hours and 00:30 Hours on the intervening night of October 13-14, 2025.

Key pathological observations recorded in the official autopsy report include:

- **Petechial Hemorrhages:** Marked presence of petechial spots across the palpebral conjunctivae and the visceral pleura, confirming acute mechanical hypoxemia.
- **Soft Tissue Trauma:** Subtle, deep-tissue contusions discovered on the inner aspects of the upper and lower lips, corresponding to external compression against the dental arch, corroborating involuntary smothering.
- **Sub-Scalp Traumatic Mark:** A localized 2cm sub-scalp hematoma in the occipital region, indicating a blunt-force deceleration or firm head immobilization against a rigid surface prior to the onset of asphyxia.
- **Post-Auricular Puncture:** Detection of a microscopic hypodermic entry puncture hidden within the post-auricular hair-bearing skin. Chemical extraction of the surrounding tissue yielded trace

concentrations of *Succinylcholine*, a rapid-acting neuromuscular blocking agent capable of inducing flaccid muscular paralysis.

The Forensic Science Laboratory (FSL) Chemical Examiner's Report (Ref: FSL/CHEM-9912/25) verified that the gastric contents and general viscera were clear of standard commercial poisons or lethal alcohol toxicosis. However, the localized presence of Succinylcholine at the post-auricular site confirms chemical immobilization, explaining the total absence of defensive wounds or chaotic disruption at the scene of the crime. The chemical agent effectively rendered the deceased incapable of physical resistance prior to the mechanical occlusion of his airway.

#### **4. STATEMENTS OF KEY WITNESSES (SECTION 161 CR.P.C.)**

Depositions of critical individuals were formally recorded under Section 161 of the Cr.P.C. to reconstruct the social, financial, and temporal matrix surrounding the deceased:

***CW-1: Meera Joshi (Personal Assistant to the Deceased)***

Deposed that the deceased was under immense psychological stress due to an aggressive corporate hostile takeover bid initiated by his primary business partner, Mr. Rajesh Varma (the Prime Suspect). She confirmed that the deceased possessed evidence regarding substantial financial defalcation executed by Varma, and was preparing to initiate criminal prosecution on October 15, 2025. She noted that Varma had explicitly threatened the deceased during a board meeting on October 11, 2025.

***CW-2: Ram Singh (Head Security Guard, Sky-Line Regal Towers)***

Deposed regarding the structural access logs of the night in question. He asserted that the digital keycard log for the private elevator serving the 14th floor registered zero external activations between 21:00 Hours and 06:00 Hours. However, he admitted under cross-examination that the main Closed-Circuit Television (CCTV) server covering the service corridor of the 14th floor suffered an unexplained, localized "data drop" or power interruption lasting exactly 45 minutes, spanning from 22:15 Hours to 23:00 Hours.

***CW-3: Rajesh Varma (Prime Suspect / Business Partner)***

Subjected to rigorous interrogation. He categorically denied physical presence within the residential jurisdiction of the deceased on the night of the incident. He maintained that a complete breakdown in personal relations existed, but asserted an absolute legal and physical alibi, stating he was in transit during the estimated window of homicide.

#### **5. INVESTIGATION TIMELINE & ALIBI VERIFICATION**

The investigative arc rigorously focused on establishing the spatial-temporal coordinates of the prime suspect, Rajesh Varma, against the scientifically derived time of death (22:00 – 00:30 Hours). A structured tracking of the suspect's movements was mapped through digital, physical, and testimonial vectors:

| Timestamp (13-Oct)  | Investigative Verification Vector & Findings                                                                                                                                                                                                                              |
|---------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 21:15 Hours         | Suspect Varma seen exiting his corporate office in Chanakyapuri via CCTV. His personal cellular unit latched onto the Chanakyapuri cell-tower tower identifier (Sector 4).                                                                                                |
| 21:50 Hours         | Automobile automatic number-plate recognition (ANPR) systems captured the suspect's vehicle at the Toll Plaza heading toward Indira Gandhi International Airport (Terminal 3).                                                                                            |
| 22:10 Hours         | Suspect enters T3 Airport Terminal. Physical identity and passport verification confirmed via biometric gate logs and verified high-definition security feeds of Airport Authority.                                                                                       |
| 22:15 – 23:00 Hours | <i>(Critical Crime Window)</i> Suspect is documented sitting within the commercial business lounge of Terminal 3. Multiple independent witnesses (lounge staff) verified his identity. Digital forensics confirm active cellular roaming data utilization at the airport. |
| 23:30 Hours         | Suspect boards commercial flight AI-802 bound for Mumbai. Flight manifest and boarding gate physical scans verify his departure.                                                                                                                                          |

The temporal mapping provides the Prime Suspect with an unassailable, legally verified physical alibi for the exact duration of the homicidal window. Cyber-forensic analysis of the suspect's electronic assets, financial ledgers, and telecommunication accounts was executed over a 90-day period. While the economic motive to eliminate the deceased was thoroughly established, the digital audit failed to reveal any covert financial transfers, encrypted communications, or conspiratorial links indicating the procurement or employment of a professional third-party contract killer or accomplice capable of executing a sophisticated chemical restraint and staging a locked-room homicide.

## 6. GROUNDS FOR CLOSURE

In accordance with the established tenets of criminal jurisprudence, a case can only transition to a successful prosecution upon the assembly of a contiguous, unbroken chain of circumstantial or direct evidence that excludes every hypothesis save that of the guilt of the accused. In the instant matter, despite the conclusive medical determination of homicide under Section 302 IPC, the evidentiary framework suffers from fatal, irremediable deficits:

1. **The Locked-Room Paradox:** The mechanical fact that the primary entrance was physically latched from the inside, combined with uncompromised window seals, creates a severe legal vulnerability. The prosecution possesses no viable theory or forensic explanation to articulate how an external perpetrator exited the premises while leaving the mechanical interior bolts fully engaged.
2. **Absence of Forensic Nexus:** Extensive multi-disciplinary processing of the crime scene by the Forensic Science Laboratory failed to yield a single speck of physical evidence—whether DNA, epithelial cells, latent footwear impressions, or textile fibers—that connects the Prime Suspect, or any identifiable secondary agent, to the interior space of Apartment 14B during the critical temporal window.

3. **Irreproachable Physical Alibi:** The target suspect's physical presence within a secure federal transportation facility (IGI Airport Terminal 3) during the precise hours of the homicide creates an absolute physical impossibility of direct execution.

4. **Conspiratorial Chain Breakage:** While the localized CCTV failure at the residential complex points toward deliberate tampering by a technically proficient entity, extensive analysis of local network routers and server logs yielded zero actionable data trails. Speculation regarding an accomplice or hired operative remains legally untenable without concrete financial or telecommunication links. Moral certainty cannot substitute for legal proof in a court of law.

**Legal Conclusion:** *The investigation has reached a conceptual and factual cul-de-sac. The high threshold of proof required to sustain a criminal charge sheet—namely, proof beyond a reasonable doubt—cannot be met with the current evidentiary inventory. Therefore, in the interest of justice and in compliance with the operational police manual, this case file is formally compiled for closure under Section 173 of the Cr.P.C., classified as "**True Homicide but Undetected / Lack of Actionable Evidence.**" Should any fresh, actionable forensic leads or verified physical evidence surface in the future, the state reserves the absolute statutory right to re-open the investigative proceedings under Section 173(8) Cr.P.C.*

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**Devendra Kumar**

Senior Inspector of Police

Homicide Division, Crime Branch

Lead Investigating Officer

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**Kalyan Mitra, IPS**

Deputy Commissioner of Police

Crime Branch & Legal Affairs

Reviewing & Approving Authority

*Date of Report Entry: June 05, 2026*

*Official Seal Counter-Signed & Forwarded to the Jurisdictional Metropolitan Magistrate.*